

1.

CASE #	CASE NAME	HEARING NAME
CVME2501974	DOE D.B., AN INDIVIDUAL VS DOE 1, A PUBLIC ENTITY	MOTION FOR TRANSFER OF VENUE

Tentative Ruling: Motion is granted.

2.

CASE #	CASE NAME	HEARING NAME
CVME2506420	MCFARLAND VS NATIONAL VISION, INC.	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: Motion for Protective order is denied. Request for Sanctions is denied for substantial justification. SROGs and RFAs are subject to the rule of 35. CCP §§ 2030.030(a)(1) and 2033.030(a) On a motion for protective order challenging the declaration of necessity, the propounding party has the burden to justify the excess amount of requests. (*Id.* at §2030.040(b), 2033.040(b).) Plaintiff does so by explaining the relevance of Defendant's corporate structure, possible alter egos of other eyecare locations, who the equipment in the eyecare center belonged to, the layout of the premises, and facts regarding the incident itself. Review of the requests themselves show they are consistent with the justification Plaintiff makes in opposition. (Declaration of Priscilla Hernandez, Exhibits I and J.) Plaintiff justifies the excess number of requests.

With the excess amount justified, the burden is on Defendant to show that the undue burden of discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. (*Emerson Elec. Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1110.) Defendant fails to provide a specific factual showing as to the quantum of work required to respond required to support an argument of an undue burden. (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.) Defendant's other arguments are not persuasive. The fact that a RFA or interrogatory may have a similar answer does not mean the request or interrogatory itself is unreasonable cumulative or duplicative – they are different discovery devices. The fact that the same information may be gathered via deposition is not grounds for a protective order.

There is no limit on RFPs. (CCP § 2031.010.) Defendant argues the additional 19 RFPs are unreasonably cumulative, duplicative, and unduly burdensome. Defendant's arguments regarding cumulative and duplicative fail for the reasons discussed above. Such an objection is valid only if discovery sought is unreasonably cumulative or duplicative. (See CCP § 2019.030(a)(1).) While multiple requests may require the production of the same or similar documents or information provided in responding to the SROGs or RFAs, the actual requests are not duplicative or cumulative. Defendant's argument that the RFPs are unduly burdensome fail. Again, Defendant's motion does not include specific factual showing to quantify the "quantum of work required" to respond. (*West Pico Furniture Co., supra*, 56 Cal.2d at 417.)

If the party properly asks for monetary sanctions the court “shall” impose a monetary sanction against the losing party on a motion for protective order unless it finds that party made or opposed the motion “with substantial justification” or other circumstances make the sanction “unjust.” (CCP § 2023.030.) Further, Plaintiff requests sanctions in its motion but does not provide an hourly rate or time spent opposing the motion.